

**SECOND AMENDMENT TO MEMORANDUM OF UNDERSTANDING
BETWEEN THE CITY OF CHEYENNE AND SADDLE RIDGE, LLC**

1. **Parties.** This Second Amendment to Memorandum of Understanding (“Second Amendment”) is made and entered into by and between Saddle Ridge, LLC (“Saddle Ridge”), whose address is 506 Shoshoni Street, Cheyenne, Wyoming 82009, and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming (“City”), whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001.

2. **Recitals.** The purpose of this Amendment is to modify certain obligations under the Memorandum of Understanding (“MOU”), executed by and between Saddle Ridge and the City dated July 10, 2006 and as amended August 3, 2011, so that certain additions to the Saddle Ridge greenway system may be extended in a logical and chronological progression. Unless otherwise indicated, references to Blocks and Lots in this Second Amendment are intended to refer to Blocks and Lots in Saddle Ridge Subdivision, Cheyenne, Wyoming.

WHEREAS, Saddle Ridge has requested that the MOU be amended to permit Saddle Ridge to construct a portion of the Saddle Ridge greenway system, at its expense, in exchange for the assumption by the City of certain other greenway and sidewalk development duties and obligations.

WHEREAS, the portion of the Saddle Ridge greenway system to be constructed by Saddle Ridge, pursuant to this amendment, is specifically described and identified as the pathway for the Saddle Ridge Greenway Development Area (“SRGDA”) running through and across Block 25, Lot 15, which portion is shaded in red on Exhibit “I” attached to this Second Amendment and incorporated herein.

WHEREAS, under the MOU, Saddle Ridge is currently obligated to build a ten foot (10') greenway path within the Whitney Road Greenway Development Area (“WRGDA”), which pathway would be constructed within a utility easement along the eastern ROW of Whitney Road running from the south ROW of U.S. Highway 30 to the northern boundary of Lot 1, Block 1, Saddle Ridge Fourth Filing, and running south from the connection of the pathways in the WRGDA and SRGDA to the north ROW of Pershing Boulevard. These portions of the Saddle Ridge greenway system are highlighted in orange on Exhibit “I” attached hereto.

NOW THEREFORE, the Parties agree to amend the MOU so that the City shall be responsible for design and construction of the WRGDA pathway from the south ROW of U.S. Highway 30 running south to the northern border of Lot 1, Block 1, Saddle Ridge Fourth Filing, as shown in orange highlighting on Exhibit “I”. City shall also be responsible for the design and construction of the sidewalk running south from the connection of the SRGDA and WRGDA to the north ROW of Pershing Boulevard, as shown in orange highlighting on Exhibit “I”. It is further agreed that Saddle Ridge shall now be responsible for construction of a portion of the SRGDA pathway running through and across Block 25, Lot 15, as shown in red highlighting on Exhibit “I”.

3. **Amendments.**

Responsibilities of Saddle Ridge.

A. Paragraph 6A(iv.) of the MOU shall be rewritten so that Paragraph 6A(iv.) shall read:

“Install and complete the 10’ greenway path from the northern border of Lot 1, Block 1, Saddle Ridge Fourth Filing, to connect with the SRGDA pathway. Provide rough grading for WRGDA through and across Block 14, Lot 20.”

B. Paragraph 6A(vi.) of the MOU shall be rewritten so that Paragraph 6A(vi.) shall read:

“Pay for the construction cost of the 10’ greenway path from the northern border of Lot 1, Block 1, Saddle Ridge Fourth Filing, running south to connect with the SRGDA pathway.”

C. Paragraph 6B shall be rewritten to include subsection “iv.” so that the MOU shall now include and incorporate the following language:

“iv. Shall construct a 10’ wide greenway path through and across Block 25, Lot 15 (as identified in Exhibit “I”) with the exception of the already completed pathway.

Responsibilities of City.

D. Paragraph 7A shall be rewritten to include subsection “v.” so that the MOU shall now include and incorporate the following language:

“v. Install and complete the 10’ greenway path from the south ROW of U.S. Highway 30 running south to the northern border of Lot 1, Block 1, Saddle Ridge Fourth Filing. Design of the path through and across Block 1, Lot 1 shall be negotiated between the developer and commercial buyer and the Parks and Recreation Department to make reasonable accommodations for the steep topography, which may include construction of the greenway path outside of the existing easement not to exceed what is reasonably necessary. The City shall make its best efforts to design and build the greenway path within the existing easement.”

E. Paragraph 7A shall be rewritten to include subsection “vi.” so that the MOU shall now include and incorporate the following language:

“vi. Pay for the construction cost of the 10’ greenway path from the south ROW of U.S. Highway 30 running south to the northern border of Lot 1, Block 1, Saddle Ridge Fourth Filing.

vii. The City shall, at its expense, design and construct a sidewalk running from the connection of the pathways of the WRGDA and SRGDA to the northern ROW of Pershing Boulevard.”

F. Paragraph 7C(i.) shall be rewritten to limit the scope of work of construction of the 10' wide trail only to Block 20, Lot 13 and what has already been constructed through Block 25, Lot 15, so that Paragraph 7C(i.) shall read:

“Provide all of the remaining improvements to the SRGDA including plantings and irrigation. City is responsible for the construction of the 10' wide trail through Block 20, Lot 13, and already constructed portion through Block 25, Lot 15, to the Fireside Drive cutoff.”

G. Exhibit “I” to this Second Amendment, attached hereto and incorporated herein, shall reflect the foregoing textual amendments to the MOU as well as Exhibit “1” of the First Amendment to the MOU.

4. **Incorporation.** This Second Amendment modifies the terms and conditions of the MOU and its previous amendments. Except as modified herein, all other terms and conditions of the MOU and the previous amendment to the MOU remain in full force and effect. This Second Amendment is entered into pursuant to paragraph 8A of the MOU pertaining to “Amendments.”

5. **Signatures.** In witness whereof, the parties to this Amendment through their duly authorized representatives have executed this Amendment on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Amendment as set forth herein.

The effective date of this Amendment is the date of the signature last affixed to this page.

Date

William J. Edwards, Saddle Ridge, LLC

CITY OF CHEYENNE

Date
(SEAL)

Richard L. Kaysen, Mayor

Attest:

Carol Intlekofer, City Clerk

LEGEND

SADDLE RIDGE
RESPONSIBILITY:



WRGDA PROPERTY:

PORTION TO BE
CONSTRUCTED
(TIE ONTO EXISTING
PATHWAY IN BLOCK 25, LOT
15; AND RUN AND TIE INTO
BLOCK 25, LOT 51; BLOCK 25,
LOT 51 FROM TIE OF
PATHWAY IN BLOCK 25, LOT
15; BLOCK 16, LOT 12; BLOCK
ONE, LOT 1 SADDLE RIDGE
4TH FILING)

CITY OF CHEYENNE
RESPONSIBILITY:



SRGDA PROPERTY:

BLOCK 1, LOT 1; BLOCK 14,
LOT 20; AND FROM THE TIE
POINT AT BLOCK 25, LOT 51
AND BLOCK 25, LOT 15 TO THE
INTERSECTION OF PERSHING
BOULEVARD AND WHITNEY
ROAD

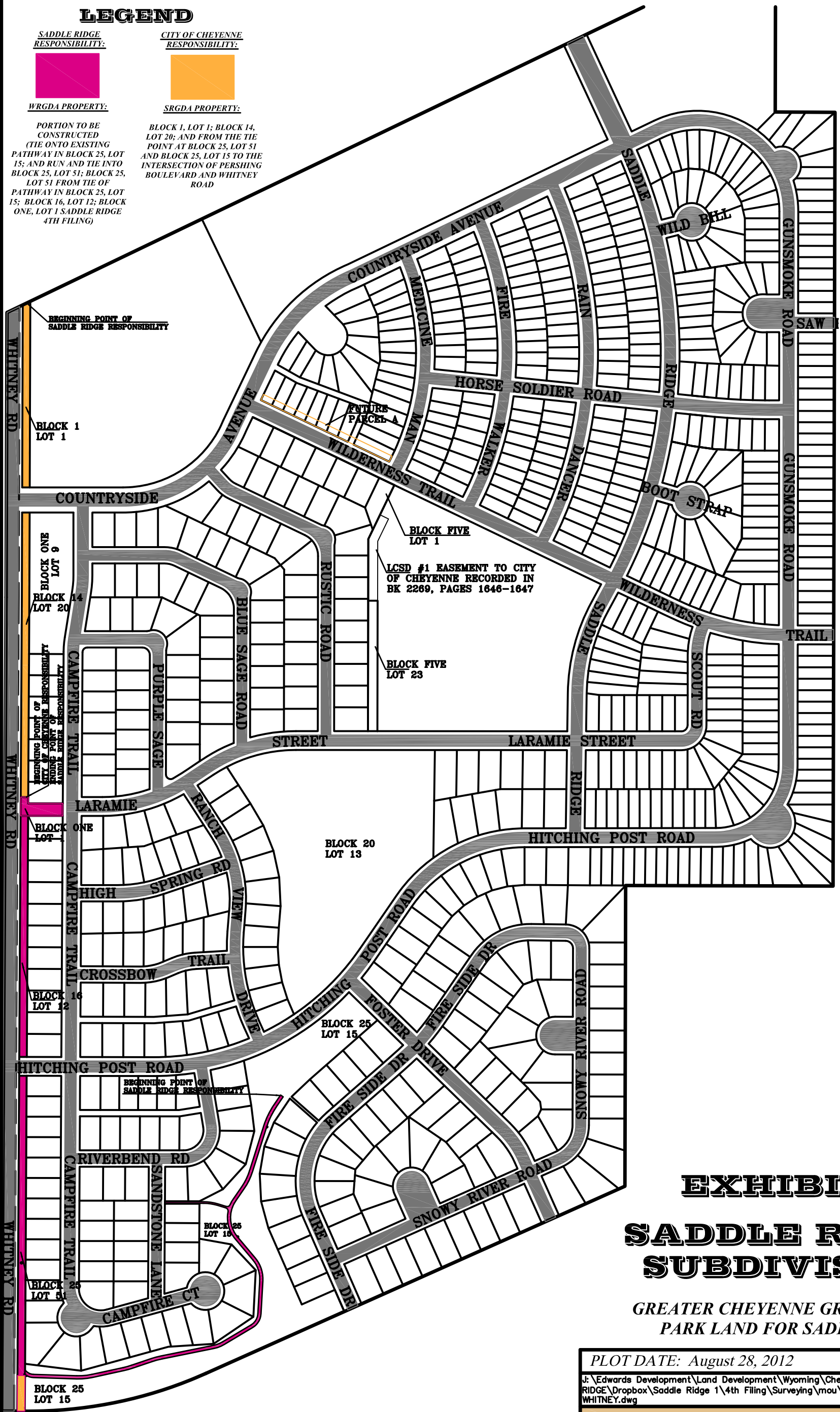


EXHIBIT "I"
SADDLE RIDGE
SUBDIVISION

GREATER CHEYENNE GREENWAY AND
PARK LAND FOR SADDLE RIDGE

PLOT DATE: August 28, 2012

Sheet 1 of 1

J:\Edwards Development\Land Development\Wyoming\Cheyenne\NEW SADDLE
RIDGE\Dropbox\Saddle Ridge 1\4th Filing\Surveying\mou\MOU REVISION FOR
WHITNEY.dwg

Edwards Development

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